

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

GuoZhen Qian

Plaintiff(s),

-against-

Resorts World Casino New York, Jamel Davis, Police
Officer Timothy Bivona, Tax Registry #945514, City of New
York, the New York City Police Department, Richard A.
Brown, District Attorney, Queens County, New York and
John Doe and Ben Roe

Defendant(s).

Index No. [type in Index No]

Summons

Date Index No. Purchased: October 6, 2017

To the above named Defendant(s)

Resorts World Casino New York, 110-00 Rocakaway Boulevard, Jamaica, New York, 11420

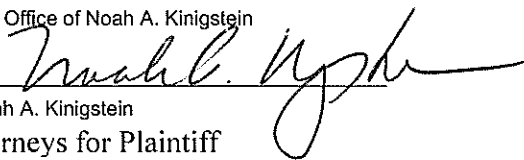
You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is Plaintiff's residence
which is 44-05 MacNish Street, Elmhurst, New York, 11373

Dated: New York, New York

October 6, 2017

Law Office of Noah A. Kinigstein

by 

Noah A. Kinigstein

Attorneys for Plaintiff

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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GuoZhen Qian,

Plaintiff,

-against-

Resorts World Casino New York, Jamel Davis, Police
Officer Timothy Bivona, Tax Registry #945514
City of New York, The New York City Police
Department, Richard A. Brown, District Attorney
Queens County, New York, John Doe and Ron Roe

Defendants.

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VERIFIED
COMPLAINT

Index No.:

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This action is brought against the defendants Resorts World Casino New York , (hereinafter “Resorts”), located at 110-00 Rockaway Boulevard, Jamaica New York 11420, Jamel Davis (hereinafter “Davis”), Police Officer Timothy Bivona (hereinafter Bivona”), The City of New York (hereinafter “City of New York”), The New York City Police Department (hereinafter “New York City Police Department”), Richard A. Brown (hereinafter “Brown”), District Attorney for Queens County, New York, John Doe and Richard Roe who are both

employees of Resorts, for the discriminatory and false arrest, on October 10, 2016 of the Plaintiff GuoZhen Qian (hereinafter “Qian”) who was falsely and discriminatorily identified as Guo Qian (hereinafter “Qian”), an individual that was barred from defendant Resorts and in which Resorts representative, employee or agent Davis, who was operating on the behest of Resorts and with the permission of Resorts falsely and discriminatorily identified Qian as Ms. Qian, without making proper and appropriate inquiry to verify that Ms. Qian was the trespasser that was barred from Resorts and proceeded to contact the New York City Police Department and file charges against Ms. Qian as the individual who was barred from entering Resorts. John Doe and Richard Roe are sued as employees of Resorts who barred forcibly assaulted and battered Qian when they took her to a room and barred the door so she could not leave. Thereafter, Davis relayed the information that Qian was an individual who was barred from Resorts based on a previously served Criminal Trespass Notice on Qian which was dated July 26, 2016 and that Police Officer Timothy Bivona arrived at Resorts and falsely arrested Qian when Davis falsely stated that Qian was Qian. Qian was then arrested on the sworn statement of both Davis and Bivona and held against her will and prosecuted although she was not the individual that had been previously notified that she was barred from entering Resorts. Richard A. Brown is being sued in his individual and

official capacity as the District Attorney of Queens County who maliciously prosecuted the plaintiff.

JURISDICTION

2. Jurisdiction of this court is appropriate because Qian resides at 44-05 MacNish Street, Elmhurst, New York, 11373.

NOTICE OF CLAIM

3. Plaintiff Qian filed a Notice of Claim with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

EXHAUSTION OF ADMINISTRATIVE REMEDIES

4. Plaintiff has exhausted all administrative prerequisites prior to filing suit.

PARTIES

5. Plaintiff is a citizen and was lawfully in the United State at the time of the events complained herein.

6. Defendant Resorts World Casino New York is, upon information and belief, a corporation incorporated under the laws of the State of New York and which is licensed to do business as a casino in which individuals come to gamble. Resorts has a principal place of business at 110-00 Rockaway Blvd., Jamaica, New York, 11420.

7. Defendant Davis was at all relevant times an employee, agent, security officer, and or employee of Resorts who was entrusted with the power and authority to authorize the barring of an individual from Resorts and/or contact the police and file charges on behalf of Resorts with the New York City Police Department.

8. Defendant Bivona, was at all relevant times was a New York City Police Officer, with the Tax Registry Number 945514, who at all relevant time worked out of the 106th Police Precinct, and as a police officer he had the power and authority to make arrest and file supporting affirmation/affidavits in the New York City Criminal Court.

9. Defendant City of New York is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

10. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department. Officers present at the time of the incidents were duly appointed and acting officers, servants, employees and agents of the City of New York and/or the New York City Police Department, a municipal agency of the defendant The City of New York. Employees of the New York City Police Department are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants and employees of defendant the City of New York, were acting for, and on behalf of, and with the power and authority vested in them by the City of New York and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

11. Defendant, Richard A. Brown is the District Attorney for Queens County, New York.

12. Defendants John Doe and Ron Roe are unknown security personnel that kept Qian in the room at Resorts when she was falsely accused of being the trespasser.

STATEMENT OF RELEVANT FACTS

13. In or about October 10, 2016, Qian was in the Resorts Casino at 110-00 Rockaway Boulevard when she was falsely identified as a trespasser that had been told that she, the trespasser, was not permitted to come into the Resorts casino.

14. Qian was falsely accused as the trespasser and was then accosted, touched and threatened by the Resort's casino security agents, employees and/or guards.

15. Qian was then accused of being the trespasser.

16. Qian attempted to explain that she was not the individual, but Qian is not fluent in English.

17. Qian explained in Mandarin Chinese and her native tongue and broken English, that she was not the person that was the named trespasser, but Resorts did not have a translator on the premises and simply ignored her pleas. Resorts made no attempt to verify that the plaintiff was the actual trespasser.

18. Upon information and belief, if Resorts had had a translator, it is possible, and or likely, that Ms. Qian could have explain that she was not the person they had barred, and upon information and belief similarly situated non-

Asian-Americans would have been treated in a better fashion than the plaintiff and her family.

19. Upon information and belief the individual that Resorts had barred has a different name, address, is a different height and weight and, in general, does not fit Qian's description.

20. Although Ms. Qian struggled to explain that she was not the person they had barred, Resorts failed to take reasonable steps to understand Ms. Qian, to wit: get a Mandarin interpreter so her explanation could be understood.

21. Thereafter, Ms. Qian, while at all times protesting, was forced into a room by John Doer and Ron Roe, two employees, agents or security personnel working for Resorts who then stood guard and did not allow Qian to leave the room. All of Resorts actions and omission caused Ms. Qian a tremendous pain and suffering. At no time did Resorts get an interpreter. The security detail of John Doe and Ron Roe in the room was threatening and belligerent.

22. Ms. Qian attempted to tell Resorts personnel that she was not the individual and she was not even in the country on the day the trespass notice was served on the actual trespasser.

23. Almost immediately after being brought to the room where she barred from leaving, Ms. Qian's son, who speaks fluent English, came to the Resort's

casino and attempted to explain that Resorts had the wrong person and that she should be released immediately.

24. Resorts continued to ignore the pleas of both Ms. Qian and her son, even after Ms. Qian's son asked for a translator, which said request Resorts ignored.

25. Thereafter, Resorts contacted the police department and continued to hold Ms. Qian against her will, refusing to investigate if they had the right person.

26. Upon information and belief, Resorts appears not to be moved by Ms. Qian and her son's pleas because Ms. Qian and the actual trespasser are both Asian-Americans. Upon information and belief, similarly situated non- Chinese-Americans would not have been treated in said discriminatory manner.

27. After approximately an hour, being forcibly held against her will, the police arrived and arrested and handcuffed Ms. Qian. She was then taken to the 106th precinct and placed in a cell.

28. Defendant Davis, signed the Criminal Court affirmation, affirming that Ms. Qian was the trespasser although Qian and her son attempted to explain that she was not.

29. Mr. Davis falsely swore that Ms. Qian was Ms. Guo Quin, and that Ms. Qian violated the trespass notice. All of his sworn statement to the Criminal Court was false.

30. Defendant Police Officer Bivona signed the Criminal Court Complaint in which he stated under oath that he was informed by Defendant Davis that Ms. Qian was given a trespass notice to not enter Resorts casino and that he “obtained records kept and maintained in ordinary course of business within a reasonable time of the event or occurrence reflected therein, indicates that the defendant was previously warned both verbally and in writing...not to enter or remain therein the above mentioned location.”

31. Upon information and belief, Police Officer Bivona’s statements were untrue and false.

32. Ms. Qian was then processed and spent approximately 24 hours in various jail cells until she was arraigned at the Queens County Criminal Court.

33. Ms. Qian was charged with one count of Criminal Trespass in the Third Degree and one count of Trespass. Ms. Qian and her son continued to explain that Resorts, the Police and the Court had the wrong person, but no one listened.

34. Ms. Qian was forced to come back to Court on several subsequent occasions and in or about January 19, 2017 her case was dismissed even though she and her son explained to the District Attorney’s Office of Queens County that they had the wrong person and that she was not in the country when the trespass notice was given to the actual trespasser.

FIRST CLAIM**DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

35. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

36. By their conduct and actions in seizing plaintiff, searching plaintiff, falsely arresting and imprisoning plaintiff, assaulting and battering plaintiff, trespassing upon plaintiff, abusing plaintiff while they in police custody, maliciously prosecuting plaintiff, abusing process against plaintiff, violating rights to due process of plaintiff, violating and retaliating for plaintiff's exercise of her rights to free speech and assembly, violating and retaliating for plaintiff's rights to equal protection, failing to intercede on behalf of the plaintiff and in failing to protect the plaintiff from the unjustified and unconstitutional treatment she received at the hands of other defendants, defendant, Bivona, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's

constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its First, Fourth, and Fourteenth amendments.

37. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and were otherwise damaged and injured.

SECOND CLAIM

LIABILITY OF DEFENDANT THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS

38. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

39. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through the individual defendant, including but not limited to Bivona had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

40. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through the individual defendants, had de facto policies, practices, customs, and usages of failing to

properly train, screen, supervise, or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

THIRD CLAIM

RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS

41. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

42. The conduct of the individual defendant, Bivona, alleged herein, occurred while he was on duty and in uniform, and/or in and during the course and scope of his duties and functions as New York City police officer, and/or while he was acting as agents and employees of the defendant THE CITY OF NEW YORK, and, as a result, the defendant THE CITY OF NEW YORK is liable to the plaintiff pursuant to the state common law doctrine of respondeat superior.

43. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM

ASSAULT AND BATTERY AGAINST BIVONA AND THE CITY OF NEW YORK

44. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

45. By the actions described above, defendants, Bivona and the City of New York did inflict assault and battery upon the plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

46. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury , costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM**ASSAULT AND BATTERY AGAINST RESORTS AND DAVIS, JOHN DOE
AND RON ROE**

47. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

48. By the actions described above, defendants, Davis, John Doe, Richard Roe and Resorts did inflict assault and battery upon the plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

49. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and were otherwise damaged and injured.

SIXTH CLAIM**FALSE ARREST AND FALSE IMPRISONMENT AGAINST BIVONA
NEW YORK CITY POLICE DEPARTMENT AND CITY OF NEW YORK**

50. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

51. By the actions described above, defendants, Bivona , the City of New York and the New York City Police Department caused plaintiff to be falsely arrested and imprisoned, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

52. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional, costs and expenses, and were otherwise damaged and injured.

SEVENTH CLAIM

FALSE ARREST AND FALSE IMPRISONMENT AGAINST DAVIS RESORTS, JOHN DOE and RON ROE

53. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

54. By the actions described above, defendants, Davis and Resorts caused plaintiff to be falsely arrested and imprisoned and caused the plaintiff to be imprisoned at Resorts for no reason while at the same time refusing to listen to

both the plaintiff and her son regarding the fact that she was not the individual that was barred. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

55. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM

TRESPASS

56. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

57. The defendants willfully, wrongfully and unlawfully trespassed upon the person of plaintiff.

58. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and were otherwise damaged and injured.

NINTH CLAIM**NEGLIGENCE**

59. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

60. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

61. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and were otherwise damaged and injured.

TENTH CLAIM**NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING**

62. The plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

63. Defendant THE CITY OF NEW YORK negligently hired, screened, retained, supervised and trained Bivona, John Doe and Ron Roe. Defendant Resorts negligently hired, screened, retained and trained both Defendant Davis, John Doe and Ron Roe, and the other security personnel that were responsible for the violations of the plaintiff's rights. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional, costs and expenses, and were otherwise damaged and injured.

ELEVENTH CLAIM

VIOLATION OF RIGHTS TO EQUAL PROTECTION OF LAW

65. The plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

66. By the actions described above, defendant, Bivona and the City of New York violated plaintiff's rights to equal protection of law. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and was otherwise damaged and injured.

TWELFTH CLAIM

MALICIOUS PROSECUTION

68. The plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

69. By the actions described above, defendants Richard A. Brown and the City of New York maliciously prosecuted plaintiff without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause

of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

70. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and were otherwise damaged and injured.

THIRTEENTH CLAIM

DISCRIMINATION

71. The plaintiff incorporate by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

72. By the conduct and actions described above, defendants discriminated against the plaintiff and violated her rights under the New York City Human Rights Act, Administrative Code 8-101 et. seq. , in that the defendants treated the plaintiff differently than similarly situated non-Chinese-Americans, and as such the plaintiff was damaged. The defendants ignoring of both Ms. Qian and her son's numerous pleas that Ms. Qian was not the trespasser and said defendants unilateral refusal to investigate, said actions and omission of the defendants was

discriminatory conduct in that similarly situated non-Chinese-Americans would not have been treated in such an abusive fashion. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. As a result of the foregoing, plaintiff was deprived of their liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and were otherwise damaged and injured.

FOURTEENTH CLAIM

CONSTITUTIONAL TORT

74. The plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

75. Defendants, The City of New York, The New York City Police Department, Bivona, acting under color of law, violated plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11 and 12 of the New York State Constitution.

76. A damages remedy here is necessary to effectuate the purposes of §§ 6, 8, 9, 11 and 12 of the New York State Constitution, and appropriate to ensure full realization of plaintiff' rights under those sections.

77. As a result of the foregoing, plaintiff was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury , costs and expenses, and was otherwise damaged and injured.

FIFTEENTH CLAIM

INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

78. The plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

79. By the actions described above, defendants engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally and/or negligently caused emotional distress to plaintiff GuoZhen Qian. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff GuoZhen Qian and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

80. As a result of the foregoing, plaintiff GuoZhen Qian was deprived of her liberty and property, experienced injury, pain and suffering, emotional injury, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. Costs and interest and attorney's fees;
- d. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
October 6, 2017

/S/ Noah A. Kinigstein
Noah A. Kinigstein, Esq.
Attorney for Plaintiff-Qian
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New York, New York 10007
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VERIFICATION

State of New York)
)s.s.:
County of New York)

GuoZhen Qian being duly sworn deposes and says:

1. I the plaintiff in this action.

2. I have read the complaint and know the contents to be thereof; the same is true to my own knowledge, except as to matters therein stated to be alleged on information and belief, and as to matters I believe it to be true.

GuoZhen QIAN

GuoZhen Qian

On 10/6 2017,
GuoZhen Qian
signed this verification in my presence.

Translated by Jie Zhou, who herein swears that he translated the Notice of Claim truthfully and accurately.

Jie Zhou

Jie Zhou

Sworn to me by GuoZhen Qian and Jie Zhou
this 6th day of October, 2017

Noah A. Kingsten
Notary Public

NOAH A. KINGSTEN
Notary Public, State of New York
No. 02K15076801
Qualified in New York County
Commission Expires April 28, 2017